



POLICE DEPARTMENT

November 6, 2009

MEMORANDUM FOR: Police Commissioner

Re: Detective Eileen Perez
Tax Registry 902189
Detective Borough Bronx
Disciplinary Case No. 84158/08

The above-named member of the Department appeared before me on April 30 and July 27, 2009, charged with the following:

1. Said Detective Eileen Perez, assigned to the 52 Precinct Detective Squad, on or about April 15, 2008, at a location known to the Department in [REDACTED], did wrongfully and without just cause, cause physical injury to another person, known to this Department.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
N.Y.S. PENAL LAW SECTION 120.00(1) – ASSAULT IN THE THIRD
DEGREE

2. Said Detective Eileen Perez, assigned to the 52 Precinct Detective Squad, on or about April 15, 2008, at a location known to the Department in [REDACTED], did knowingly act in a manner likely to be injurious to the physical, mental, or moral welfare of a child less than seventeen years old.

P.G. 203-10, Page 1, Paragraph 5 GENERAL REGULATIONS
N.Y.S. PENAL LAW SECTION 260.10(1) – ENDANGERING THE WELFARE
OF A CHILD

3. Said Detective Eileen Perez, assigned to the Detective Borough Bronx, on or about April 15, 2008, at a location known to the Department in [REDACTED], engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that Detective Perez struck her daughter with a belt several times on the arm causing bruising. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 GENERAL REGULATIONS
PUBLIC CONTACT
PROHIBITED CONDUCT

COURTESY • PROFESSIONALISM • RESPECT

The Department was represented by Amy Avila, Esq., Department Advocate's Office, and the Respondent was represented by James Moschella, Esq.

The Assistant Department Advocate moved to dismiss Specification Nos. 1 and 2. The Respondent, through her counsel, entered a plea of Not Guilty to Specification No. 3. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

It is recommended that the motion to dismiss Specification Nos. 1 and 2 be granted. The Respondent is found Guilty of Specification No. 3.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Sergeant Charles Cinao, Police Officer Anthony Pitt, and Mary Lepore as witnesses.

Sergeant Charles Cinao

Cinao, a 14-year member of the Department, is currently assigned to the Chief of Detectives Investigations Unit. On April 24, 2008, he was assigned to investigate a domestic incident involving the Respondent and her daughter, [REDACTED]. He explained that due to the manner in which the Respondent disciplined [REDACTED] for getting bad grades, she was arrested and placed on modified duty assignment. As part of his investigation, Cinao spoke with Alida Dempsey from the Administration for Children's Services (ACS).

Cinao learned from Dempsey that ACS had filed a petition regarding [REDACTED] in Family Court. Cinao also spoke with Mary Lepore, the nurse at [REDACTED] school. Lepore told Cinao that she observed bruising on [REDACTED] left shoulder and notified Anthony Pitt, the police officer at the school. Cinao later spoke with Pitt, who was the one who notified ACS about the incident. Pitt also took photographs of [REDACTED] injuries. Approximately a month after the incident took place, Cinao spoke with [REDACTED]. Because so much time had passed, Cinao did not bother looking for injuries. He explained that by looking at the photographs, he knew that the injuries probably did not last more than a day or two. [REDACTED]a told Cinao that the Respondent struck her with a belt several times because she was angry about her ([REDACTED]s) report card. Based on his investigation, Cinao substantiated an allegation against the Respondent of endangering the welfare of a child.

On cross-examination, Cinao testified that his interview with [REDACTED] took place on May 14, 2008. At the time, [REDACTED]a was living at home with the Respondent, and relations between them were good. [REDACTED] told Cinao that the April 15, 2008 incident was the only time that the Respondent ever struck her. Cinao confirmed this fact in interviews with other witnesses. Neither the Respondent's supervisor nor the [REDACTED] Police Department had any knowledge of previous domestic incidents. Cinao did learn, however, that the Respondent once called the [REDACTED] Police Department because [REDACTED] was intoxicated.

Cinao testified that the photographs taken by Pitt showed two elongated bruises that extended four or five inches from [REDACTED] upper shoulder to the bicep area. According to Cinao, these bruises were consistent with a belt striking the arm. No other type of injury was ever mentioned by [REDACTED], Lepore, or Pitt. [REDACTED] did not receive any medical treatment for her injuries. The Respondent was fully cooperative with Cinao

during the investigation, and she freely admitted to striking [REDACTED] with a belt. Proceedings against the Respondent in Family Court and Criminal Court were ultimately dismissed and sealed. Neither court reached any sort of adverse finding against the Respondent.

Police Officer Anthony Pitt

Pitt is a 20-year member of the [REDACTED] Police Department in [REDACTED]. During the school year, he is assigned as the school resource officer at [REDACTED] High School. He testified that on April 16, 2008, Lepore asked him to come to the nurse's office to look at [REDACTED]. In the office, he observed injuries on [REDACTED]'s back and arm. According to Pitt, he saw some red marks, redness, swelling, and a couple of welts on the back side of [REDACTED]'s left upper arm and the lateral area of her back. He stated that the welt on [REDACTED]'s arm was quite wide, really swollen, and red. It was square-shaped, measuring a quarter-inch. The welt on her back was also red and swollen but not as wide. Pitt did not recall seeing any bruising. [REDACTED] told Pitt that her mother struck her with a thick belt five to ten times because of a bad report card. Pitt took [REDACTED] to the police station house, where a Domestic Incident Report (DIR) was prepared.

[Department's Exhibit (DX) 1 is a copy of the DIR, prepared on April 16, 2008.]

While in the nurse's office that day, Pitt took photographs of [REDACTED]'s injuries. [DX 2 consists of photocopies of seven photographs taken by Pitt of [REDACTED] left arm and shoulder. The copies are black and white. Pitt explained that since the photocopies are black and white, [REDACTED]'s injuries are not visible on them.]

Pitt testified that he is aware that a parent has a legal right to use reasonable physical force to discipline a child. Based on [REDACTED]'s statement and injuries, though, Pitt arrested the Respondent for assault and endangering the welfare of a child. [REDACTED] was taken to a safe place for the night.

On cross-examination, Pitt testified that he did not notice any bleeding or pus from [REDACTED] injuries. He did not secure any medical attention for her, as she was already under the care of the school nurse.

Mary Lepore

Lepore has been employed for approximately nine years as a registered nurse at [REDACTED] High School. She has an associate's degree in applied science, graduating from the State University of New York in Orange County in 1977. She has received training on child abuse and is mandated by law to report incidents of child abuse and neglect. She first met [REDACTED] when [REDACTED] transferred into the [REDACTED] school district in September 2007. Lepore testified that on the morning of April 16, 2008, [REDACTED] and her friend (subsequently identified as Laura Rivera) were in her office putting on makeup. Upon observing injuries on [REDACTED] Rivera informed Lepore about them. At that point, Lepore went to look at the injuries herself. When Lepore rolled up [REDACTED]'s sleeve, [REDACTED] pulled away because she was afraid it was going to hurt. [REDACTED] told Lepore not to touch her because the injuries were painful. Lepore stated that she saw red marks on [REDACTED]'s upper arm and shoulder area. When Lepore asked her if there were any other injuries [REDACTED] indicated that there were also marks on her back between the scapula and two wing

bones. [REDACTED] told Lepore about the Respondent becoming upset about her grades and disciplining her with a belt. [REDACTED] was angry and cried as she spoke about the incident.

Lepore testified that it is her duty to report when she feels there is a possibility of child abuse or an unsafe situation. She reported [REDACTED]'s situation because she was uncertain of what actually occurred. She gave [REDACTED] ice for her injuries, and she called her administrator and Pitt to the office. Lepore took notes on the incident as [REDACTED] spoke about it. [DX 3 is a copy of the notes Lepore prepared that day.] ACS was ultimately notified, and [REDACTED] spent the night in a shelter.

On cross-examination, Lepore testified that she did not know how many times [REDACTED] was struck by the Respondent. Lepore did not see the need for any outside medical attention [REDACTED] came to Lepore's office every morning of the school year. Prior to April 16, 2008, [REDACTED] never gave Lepore any indication of being struck by the Respondent. According to Lepore, [REDACTED] was having academic difficulty, failing some courses, and frequently absent from class. Lepore had spoken with the Respondent on the telephone about [REDACTED]'s academic situation. During that conversation, the Respondent told Lepore that she wanted [REDACTED] to spend less time in the nurse's office since [REDACTED] was going to the nurse's office instead of going to class. Lepore explained that [REDACTED] did malingering at times in the nurse's office, complaining about a stomachache or headache. After evaluating [REDACTED], Lepore would send her back to class.

On redirect examination, Lepore testified that in September or October of 2007, [REDACTED] told her that the Respondent became upset with her and made her walk or run on a treadmill as punishment. Lepore did not think this was such a terrible punishment.

Although [REDACTED] complained about sore leg muscles, she did not have any bruising or swelling.

The Respondent's Case

The Respondent testified in her own behalf.

Respondent Detective Eileen Perez

The Respondent, a 17-year member of the Department, is currently assigned to Detective Borough Bronx. As a result of the current case, she was suspended from the Department for 30 days starting on April 16, 2008 and has been on modified duty assignment ever since. The Respondent testified that she has raised [REDACTED] as a single parent. They used to live in [REDACTED], but the Respondent bought a house in [REDACTED] because she believed it was a better environment for [REDACTED]. She explained that [REDACTED] had been cutting class in [REDACTED], and she wanted to give [REDACTED] a greater chance of succeeding in high school and going on to college. In September 2007, [REDACTED] started in [REDACTED] High School. The Respondent testified that [REDACTED] is a procrastinator and tends to get lazy with her studies. The Respondent has always been an active parent when it comes to [REDACTED]'s academics. When [REDACTED] started to miss homework and get bad grades, the Respondent decided in conjunction with [REDACTED]'s guidance counselor to put [REDACTED] on a weekly progress report. In addition, the Respondent periodically called [REDACTED]'s teachers. At first [REDACTED] performance improved, but then her grades started to slip again. The Respondent also learned that [REDACTED] had started to skip class. On a report card from November 2007, teachers gave [REDACTED] comments such as, "Makes little or no effort;

in danger of failing; absences affecting performance; and excessive tardiness." The report card also showed that while [REDACTED] was absent from school three times that term, she had missed geometry class seven times. [Respondent's Exhibit A is a copy of this report card.] After reviewing the report card, the Respondent immediately called [REDACTED] guidance counselor. The guidance counselor informed the Respondent that at times [REDACTED] was in the nurse's office when she was supposed to be in class. The Respondent called Lepore and asked her to send [REDACTED] back to class unless medical attention was necessary. [REDACTED] was placed back on weekly progress reports and sent to counseling. In addition, the Respondent punished her by not letting her go out with her friends on the weekends and taking away her cell phone and computer.

The Respondent testified that on one occasion [REDACTED] came home from a party apparently intoxicated. [REDACTED] admitted to the Respondent that she had been drinking and that other people at the party had been smoking marijuana. [REDACTED] threatened to run away while the Respondent was in bed that night. The Respondent ended up calling the local police department. She explained that she wanted [REDACTED] to experience talking to the authorities. She asked the responding police officers if they could remove [REDACTED] to another location temporarily, but the police informed her that there was no facility for [REDACTED] to go.

On April 15, 2008, the Respondent received another of [REDACTED] report cards. The Respondent testified that when she saw that [REDACTED] had failed three or four of her major classes, she was flabbergasted. She went into [REDACTED]'s room and asked her about her failing grades. According to the Respondent [REDACTED] looked at her with a stupid stare and told her, "You don't care. You told me do whatever I want to do." At that point, the

Respondent, who had been in the process of changing her clothes and had her belt in her hand, swung the belt at [REDACTED] [REDACTED] tried to catch the belt, and the Respondent proceeded to swing the belt twice more, making contact with the same spot on [REDACTED] body. [REDACTED] was wearing a short-sleeved shirt. The Respondent did not strike [REDACTED] with the belt buckle. The Respondent explained that she struck [REDACTED] with the belt because she needed to get her attention and try something new. [REDACTED] had become immune to all the other forms of punishment that had been used before. The Respondent stated that it was not her intention to hurt [REDACTED] and she did not think she caused [REDACTED] pain since [REDACTED] did not cry or complain of any pain. After striking [REDACTED] for the second time, the Respondent left the room. At the time of the incident, [REDACTED] was 16 years old. The Respondent stated that it was the first time she had ever disciplined [REDACTED] physically.

The next day, Pitt called the Respondent and asked her to come to the police station. Upon her arrival at the station house, the Respondent was arrested for assault and endangering the welfare of a child. The Respondent was released from custody on her own recognizance. She never received any sort of instruction to stay away from [REDACTED]. The criminal case against the Respondent was adjourned contemplating dismissal. After several subsequent court dates, the case was dismissed and sealed. A Family Court case was also dismissed. According to the Respondent, [REDACTED] is now doing wonderfully. She has finished high school, did well in school, and has registered to take 14 college credits next term. The April 15, 2008 incident was the only time that the Respondent ever struck [REDACTED].

On cross-examination, the Respondent testified that [REDACTED] behavior was upsetting and at times frustrating. In the summer of 2007, an anonymous call was made to ACS about a dispute that took place between the Respondent and [REDACTED]. It was determined that the allegation made in that call was unfounded. Prior to reviewing the April 2008 report card, the Respondent believed that [REDACTED] was doing better in school. When she went to [REDACTED]'s room to confront her about the failing grades, the Respondent was upset. The Respondent reiterated that she had a belt in her hand at the time because she had been in the process of changing her clothes. The Respondent was angered by [REDACTED] attitude. She struck [REDACTED] because [REDACTED] had done poorly in school and also because [REDACTED] was being disrespectful. The Respondent testified that she is absolutely certain that she struck [REDACTED] twice, not five to ten times. The belt was made of leather and was approximately an inch wide.

[REDACTED] chose to stay in a group home for approximately a month starting on the day after the incident. Although the Family Court case against the Respondent was adjourned in contemplation of dismissal, the court imposed a stipulation on the Respondent that she not use corporal punishment again against [REDACTED]. While at work, the Respondent has investigated allegations of child neglect or maltreatment. The Department takes these types of offenses seriously.

On redirect examination, the Respondent testified that she believes her actions on April 15, 2008 were lawful and acceptable.

On recross-examination, she stated that while parents have a legal right to discipline their children, there is a line that can be crossed. The Department has arrested parents who claim they were just disciplining their children.

FINDINGS AND ANALYSISSpecification Nos. 1 and 2

The Respondent was charged with wrongfully and without just cause causing physical injury to [REDACTED] (assault in the third degree) and knowingly acting in a manner likely to be injurious to the physical, mental, or moral welfare of a child less than 17 years old (endangering the welfare of a child). The Department made a motion to dismiss these Specifications because there is no evidence that the Respondent's conduct reached the level of criminality alleged. Specifically, the injury sustained by [REDACTED] did not rise to the level of injury necessary to satisfy an allegation of assault. Similarly, the Respondent and [REDACTED] do not have a history of domestic violence, and the April 15, 2008 incident taken by itself does not constitute the crime of endangering the welfare of a child.

It is, therefore, recommended that the motion to dismiss be granted.

Specification No. 3

The Respondent stands charged with engaging in conduct prejudicial to the good order, efficiency, or discipline of the Department in that she struck [REDACTED] with a belt several times on the arm causing bruising. The parties submitted legal memoranda on a parent's right to physically discipline a child. Both parties agree that parents do, in fact, have the right to physically discipline their children. New York State Penal Law Section 35.10(1) provides, "The use of physical force upon another person which would otherwise constitute an offense is justifiable and not criminal [when] a parent . . . of a person under the age of twenty-one . . . uses[s] physical force, but not deadly physical

force, upon such person when and to the extent that he reasonably believes it necessary to maintain discipline or to promote the welfare of such person.”

Both parties also agree that a parent’s right to discipline a child is not without limits. The Family Court Act Section 1012 provides that a parent is restrained from “unreasonably inflicting or allowing to be inflicted harm, or substantial risk thereof, including the infliction of excessive corporal punishment.” Thus, the recurrent issue addressed by courts in interpreting the appropriateness of a parent’s use of corporal punishment is whether the punishment administered was reasonable or whether it was excessive.

The Appellate Division has held that when a parent strikes a child causing lacerations and bruising, it will warrant a finding of maltreatment based on excessive corporal punishment. In the Matter of David Castilloux, 16 A.D. 3d 1061, 1062 (4th Dept. 2005). Similarly, In the Matter of Vincent KK, the petitioner admitted that he struck his daughter four times with a belt, and other evidence demonstrated that the blows resulted in bruising to the child’s arms and legs. The Appellate Division confirmed that this conduct constituted excessive corporal punishment. 284 A.D.2d 777 (3d Dept. 2001). The Appellate Division also confirmed that it was excessive corporal punishment for a grandfather to repeatedly strike his grandson with a yardstick, leaving bruises on his back and arms. In the Matter of Steven L, 28 A.D.3d 1093 (4th Dept. 2006).

The Respondent’s conduct in the present case is similar to that of the petitioners in the cases cited above. The Respondent admitted to striking [REDACTED] twice with an inch-wide leather belt because she was upset by [REDACTED]’s grades and angered by her disrespectful attitude. Pitt testified that the incident left [REDACTED] with swollen, red welts on

her arm and back. According to Pitt, the welt on [REDACTED]'s arm measured a quarter-inch. This Court does not doubt that the Respondent is a concerned and attentive parent. The injuries sustained by [REDACTED], nevertheless, support the conclusion that the Respondent engaged in excessive corporal punishment. Her conduct was, therefore, not protected by Penal Law Section 35. Accordingly, the Respondent is found Guilty as charged.

PENALTY

In order to determine an appropriate penalty the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y. 222 (1974).

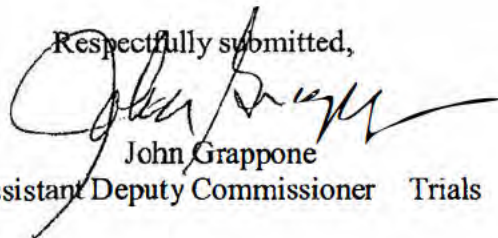
The Respondent was appointed to the Department on June 30, 1992. Information from her personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has been found Guilty of engaging in conduct prejudicial to the good order, efficiency, or discipline of the Department in that she struck [REDACTED] with a belt several times on the arm causing bruising. The Assistant Department Advocate recommended a penalty of 20 suspension days already served. In Disciplinary Case Nos. 79380/03 & 79906/04, a ten-year member with no prior disciplinary record forfeited 20 penalty days for striking his stepson with a belt, causing bruising. In that case, however, the Respondent also pleaded Guilty to other assorted acts of misconduct (being off post, failing to remain alert, failing to safeguard his identification card). In Disciplinary Case No. 79915/04, a nine-year member with no prior disciplinary record forfeited ten penalty days for slapping his stepdaughter, causing her to suffer redness in her eye. In that case

(as in the current case) the inappropriate corporal punishment of a child is the only act of misconduct of which the Respondent was found Guilty.

Based on the foregoing, I recommend that the Respondent in the current case forfeit ten suspension days already served and that the other 20 pre-trial suspension days that she has served be restored to her.

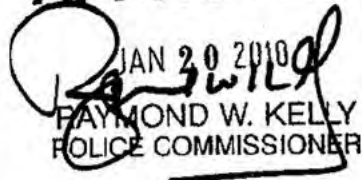
Respectfully submitted,



John Grappone

Assistant Deputy Commissioner Trials

APPROVED



JAN 20 2010
RAYMOND W. KELLY
POLICE COMMISSIONER

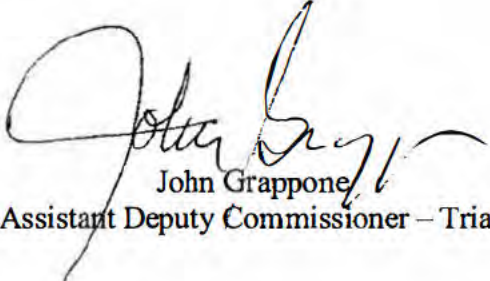
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE EILEEN PEREZ
TAX REGISTRY NO. 902189
DISCIPLINARY CASE NO. 84158/08

In 2006 and 2007, the Respondent received an overall rating of 4.0 “Highly Competent” on her annual performance evaluation. In 2005, she received an overall rating of 4.5 “Extremely Competent/Highly Competent.” [REDACTED]

[REDACTED] In June 2008, she was placed on Level II – Discipline Monitoring. She has no prior formal disciplinary record.

For your consideration.


John Grappone
Assistant Deputy Commissioner – Trials